

Naresh Sao vs Gopal Sonar & Anr on 15 July, 2008

IN THE HIGH COURT OF JUDICATURE AT PATNA

FA No.234 of 2007

NARESH SAO

Versus

GOPAL SONAR & ANR

5/ 15/7/2008

. I.A. No.761/08 has been filed by the appellant for condonation of delay in preferring the appeal. The Court has heard the counsel for the appellant and the counsel for the respondents 1 st Set also.

Title Suit (Matrimonial) Case No.21/05 was filed by respondent No.2 of the 1 st set against respondent No.4 under Section- 11 of the Hindu Marriage Act for declaring the marriage between them as a nullity. Respondent No.4 entered appearance, filed a written statement when paragraph-3 of the judgement notices her admission of her having married one Badri Sah and concealing which marriage she remarried respondent No.2 during subsistence of the first marriage which was not sustainable and that the latter marriage was against her wishes.

The appellant is the father of respondent No.4. Learned counsel fairly concedes that his daughter, respondent No.4, has not preferred any appeal against the decree for declaration of her marriage to the respondent No.2 as a nullity.

It is peculiar that the daughter of the appellant wishes to pursue her own life with another when the appellant insists on his own decision how she will live her life as per his desires.

This Court has gone through the pleadings in the limitation petition. This Court is not satisfied of the grounds urged to condone the delay for his illness. The certificate in support of the plea leaves this Court thoroughly dissatisfied.

In any event, no useful purpose is going to be served by condonation of delay when the respondents 2 and 4 have decided to part ways which the appellant only seeks to disrupt. The appeal is frivolous. This court is not persuaded to condone the delay to only increase the burden of the High Court. The application for condonation of delay is rejected.

The appeal stands dismissed.

KC

(Navin Sinha,J)